Effective Date:
07/22/2022

Background:
CalFresh households (HH) that report their benefits have been electronically stolen, may be eligible to receive replacement benefits.

Purpose:
This Special Notice provides updates to information that is currently in CFPG 63-168. The updates pertain to electronic theft reporting requirements, what constitutes a countable replacement, and the benefit amount that can be replaced for each countable replacement.

Electronic Theft Reporting Requirements:
To be eligible for benefit replacement, customers must report electronic theft to the Electronic Benefit Transfer (EBT) Customer Service Helpline **or** the county no later than 10 days from the date the electronic theft transaction occurred. Once the theft is reported, the customer must complete and submit the Report of Electronic Theft of Benefits (EBT 2259) and EBT Scamming Acknowledgement (EBT 2259A) when applicable. These forms must be submitted to the county within 90 days of the date the electronic theft transaction occurred.

Countable Replacement:
A countable replacement is considered a replacement of benefits due to skimming/scamming. Benefits may be skimmed/scammed in a single large transaction or in a series of smaller transactions over time. The term “countable replacement” refers to each overall skimming/scamming sequence reported by a recipient, regardless of the number of specific transactions that were involved. A series of smaller transactions all reported at one time will constitute one countable replacement. Customers may receive no more than two countable replacement issuances in a six-month period.

Note: When a customer makes a report of skimming/scamming with a sequence of transactions, the report may include transactions within and outside the 10-day reporting timeframe. In such circumstances, only the losses reported within 10 days of the occurrence may be replaced.

Example:	
Scenario	Customer calls EBT Customer Service Helpline on April 10, 2022, to report skimming that occurred on March 27, 2022 for $100 and April 3, 2022 for $200. Customer provides the completed EBT 2259 within 90 days.
Outcome	This sequence of transactions reported is considered one countable replacement. Staff may only replace the benefits that were skimmed on April 3, since the transaction that occurred on March 27 was not reported within 10 days of the occurrence.

The amount that can be issued for each countable replacement will not exceed the monthly allotment the HH is eligible to.

Note: Supplemental Nutrition Benefits (SNB) and Transitional Nutrition Benefits (TNB) are not eligible to replacement due to electronic theft.

Example:	
Scenario	CalFresh HH of 2 is eligible to $200 per month in benefits. HH reports that they had $400 in CalFresh benefits skimmed. The skimming was reported timely and EBT 2259 received timely.
Outcome	The HH will only receive $200 in replacement benefits. The HH could not receive replacement benefits totaling $400 because their monthly eligible allotment is only $200.

Program Impacts:
None

References:
ACL 21-133

Sunset Date:
This policy will be reviewed for continuance on or by 07/31/2023

Approval for Release:



Assmaa Elayyat, Chief